ROBERT KAGANDI

Versus

DZIKAMAI MAVHAIRE

And

HILLVIEW FARM (PVT) LTD

And

PROVINCIAL MINING DIRECTOR (MASVINGO)

And

MINISTER OF MINES AND MINING DEVELOPMENT

And

THE OFFICER IN CHARGE: ZRP MINERALS MASVINGO

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDAJ
MASVINGO 19 August 2026 & 31 August 2026

Urgent court application for spoliation

T. Nyoka, for the applicant
F. R. T. Chakabuda, 1st and 2nd for the respondents

DUBE-BANDA J:

[1] This is an urgent court application for a spoliation order. At the conclusion of a case management meeting, I ruled that the application was urgent and ordered the parties to file the required pleadings within a truncated timeline. I further directed, after consultation with the Registrar, that the matter be set down for a hearing on 19 August 2026.

[2] In this application, the applicant seeks, as against the two respondents "the respondnets", a final order couched in the following terms:

a) The first respondent, his agents, employees, or anyone acting on his behalf are ordered to restore vacant, peaceful, and undisturbed possession and use of the mining property known as Enfield Coronation 2 situated partly on Bruceham Farm (6 hectares) partly on Victoria Farm 1 (1 hectare) approximately 137 metres north of Coronation and approximately 500 metres north east of trig beacon 475/1 Re Pegs 4697 & 4718 Masvingo to the applicant, his site manager, and his employees immediately upon service of this order.
b) The first respondent is ordered to instantly dismantle and remove all physical barricades, blockades, tents, and obstructions preventing the applicant and his employees from accessing the mining property.
c) In the event that the first respondent wishes to erect any security barricades, the first respondent should do so in consultation with the applicant.
d) In the event that the first respondent fail, refuses or neglects to comply with paragraph 1 and 2 of this interim relief within two (2) of service, the Sheriff of Zimbabwe or his lawful deputy is hereby authorized, mandated and directed to deploy to the mining property, remove the barricades, tents, and obstructions, and physically secure the applicant's access at the first respondent's costs.
e) The fourth respondent (Officer Commanding / Officer in charge, ZRP Minerals Masvingo) and all law enforcement officers under his command are hereby directed to provide the Sheriff of Zimbabwe with all necessary physical and operational assistance to enforce absolute compliance with this order.

[3] The application is opposed by the first and second respondents. The third, fourth and fifth respondents neither filed opposing papers nor participated in these proceedings. I take it that they have decided to abide by the decision of this court.

Background facts

[4] This application will be better understood from the following background. The applicant contends that he is the registered holder of mining claims known as Enfield Coronation. He states that his management team, employees and himself were in peaceful and undisturbed

possession of the mining claims. They had set up an operational structure on-site for more than twenty years without disturbance or hindrance from the first respondent. He avers that on 13 July 2026, the first respondent forcibly entered the mine and erected physical barricades, tents, and blockades across the access points of the mining claims. It is stated that the first respondent's armed agents removed the entire workforce and took control of the mining claims. It is against this background that the applicant filed this application seeking the order stated above.

Points *in limine*

[5] Both parties raised, as against the other, points *in limine*. It is important to state that a properly taken point *in limine* is a useful tool in litigation and the administration of justice in that valuable time and resources are saved. However, an ill-conceived point *in limine* can derail the expeditious finalization of matters which is prejudicial to the administration of justice. It is in this context that it becomes a point that a *in limine* must be carefully thought out before it is taken. It is important that it be understood what a point *in limine* is and what it entails. In general, a point *in limine* is a point of law which is dispositive of the matter prior to getting into the merits. The jurisprudence is that a point *in limine* must be determined before the determination of the merits. It is in that context that the court in *Heywood Investments (Private) Limited T/A GDC Hauliers* v *Pharaoh Zakeyo* S-32-13 said:

> "It seems to me that the court *a quo* failed to appreciate the legal issue raised by the point *in limine.* It is incumbent upon a court before which an application is made to determine it. A court before which an interlocutory application has been made should not proceed to determine a matter on the merits without first determining the interlocutory application."

[6] This case was contested more on points *in limine* than on the merits of the dispute. As I am required, I must determine each point that has been taken by the litigants.

Applicant's points *in limine*

Whether the notice of opposition is invalid

[7] Mr *Nyoka,* counsel for the applicant, raised a point *in limine, viz*, that the notice of opposition was filed outside the timeline provided in the case management order. In the case management order, I directed that the notice of opposition must be filed on 6 August 2026. However, the respondents filed their notice of opposition on 7 August 2026. The applicant sought that the notice of opposition be ruled invalid and the matter be dealt with as an unopposed application. In answer to the point *in limine*, Mr *Chakabuda,* counsel for the respondent, made an oral application for condonation and upliftment of the bar. It is trite that only in very few instances can an oral application for condonation and upliftment of a bar be entertained by the court. This is because, in such a case, the applicant must explain the reason for the delay and thereafter convince the court that he has a *bona fide* defence on the merits. See *Grain Marketing Board* v *Martin Muchero* 2008 (1) ZLR 216 (S) at p 220D – F. It is generally difficult to meet these requirements and the threshold through submissions made from the bar. However, because of the facts of this case, I entertained the oral application. The primary duty of the court is to uphold justice and ensure that litigants are treated fairly.

[8] It is trite that condonation is an indulgence which may be granted at the discretion of the court. The applicant must satisfy the court/judge that there are compelling circumstances which would justify a finding in his favour. The factors to be considered in an application for condonation of any failure to comply with the rules or order of court are well-established. They are expounded in several decisions of the superior courts. They include the following:

a) The extent of the delay involved or non-compliance in question.
b) The reasonableness of the explanation for the delay or non-compliance.
c) The prospects of success should the application be granted.
d) The possible prejudice to the other party.
e) The need for finality in litigation.
f) The importance of the case.

g) The convenience of the court.
h) The avoidance of unnecessary delays in the administration of justice.

See: *Read v Gardner & Anor* 2019 (3) ZLR 575 (S); *Forestry Commission v Moyo* 1997 (1) ZLR 254 (S); *Maheya v Independent African Church* 2007 (2) ZLR 319 (S).

[9] In an application of this nature no single factor is decisive. See: *Law Society of Zimbabwe v Sengweni* 2018 (1) ZLR 699 (H). These factors must be applied flexibly and holistically, weighing them against each other. In some instances, weak prospects of success may not offset a full, complete and satisfactory explanation for a delay, while strong merits of success may excuse an inadequate explanation for the delay (to a point). In *United Plant Hire (Pty) Ltd v Hills and Others* 1976 (1) SA 717 (A) at 720G the court said:

> "These factors are not individually decisive but are interrelated and must be weighed one against the other, thus a slight delay and a good explanation may help to compensate for prospects of success which are not strong."

[10] In this case the notice of opposition was uploaded onto the IECMS platform on 6 August 2026 at 17:57. It was approved by the Registrar in the morning on 7 August 2026. The degree on non-compliance was at least two hours, and at most 19 hours. That is not an inordinate delay. Again, a look at the opposing papers (though not properly before court at this stage) shows that it cannot be said that the opposition is doomed to fail. In addition, there was no prejudice to the applicant, he filed an answering affidavit and heads of argument. This is what weighed heavily in favor of granting the application. It is in this context that I made an order couched in the following terms:

a) That the application for condonation and upliftment of the bar be and is hereby granted.
b) That the notice of opposition filed on 7 August 2026 is deemed to be properly before court.
c) There is no order as to costs.

[11] The applicant took a further point *in limine, viz,* that the notice of opposition is fatally defective. It being contended that it is not in compliance with Form No. 24 of the High Court

Rules, 2021. And that it purports to oppose a non-existent urgent chamber application, when what is before the court is an urgent court application. The view I take is that structurally, the notice of opposition complies with Form No. 24. The reference to an urgent chamber application is a deficiency, but not to the extent of rendering the notice of opposition fatally defective and to non-suit the respondents. It is for these reasons that this point *in limine* has no substance and is refused.

[12] The last point *in limine* taken by the applicant is that the opposing affidavit is an improper joint affidavit deposed by the first respondent, acting concurrently in his personal capacity and on behalf of the second respondent. It was submitted that the opposing affidavit is defective and must be expunged from the record and the matter be dealt with as an unopposed application. In the context of litigation, an affidavit can be defined as a written sworn statement of fact, used as evidence in court proceedings. The deponent swears before a commissioner of oaths that the contents, to his or her knowledge and belief, are true and correct. It must contain personal knowledge of one person. In terms of r 57(4)(a) of the High Court Rules, 2021, an affidavit filed with a written application shall be made by the applicant or respondent, as the case may be, or by a person who can swear to the facts or averments set out therein. The applicant has mischaracterized the opposing affidavit; it is not a joint affidavit; it is deposed to by one person on behalf of two litigants before court. It is like in a trial, a director of a company taking the witness stand to give evidence on behalf of the company and himself or herself. What would be impermissible is an affidavit deposed to by more than one person. This is not the case in *casu*. In the circumstances, this point *in limine* has no merit and is refused.

Respondents' points *in limine*

[13] I now turn to the points *in limine* taken by the respondents. The respondents argued *in limine* that the applicant lacks *locus standi* to institute this application in his personal capacity, because the mining claim is registered in the name of a syndicate called Enfield Syndicate. It was argued that a single member cannot seek a spoliation order without first establishing direct legal interest. This point *in limine* is much ado about nothing. The answer is in r 11 of the High Court Rules, 2021, which in r 11 (1)(b) as read with r 11(14)(a) provide thus:

11. "(1) In this rule— 'associate' in relation to—

(a) a trust, means a trustee;

(b) an association other than a trust, means a member of the association; "association" means any unincorporated body of persons, and includes a partnership, a syndicate, a club or any other association of persons;

(14) This rule shall not be construed as affecting—

(a) the entitlement of an associate to institute proceedings on behalf of his or her firm or association or fellow associates."

[14] As an associate, the applicant has *locus standi*, in his name, to institute proceedings, on behalf of the association or fellow associates. He has *locus standi* to institute proceedings in his name. This is what he has done in this matter. This resolves and disposes of this point *in limine*. In the circumstances, it has no merit and is refused.

[15] The respondents argued *in limine* that the applicant has no valid authority to institute these proceedings on behalf of the syndicate. This point has no merit because the applicant is suing in his name and he derives authority from r 11 (1) (b) and 11 (14) (a) cited above. In the circumstances, he requires no authority. This point *in limine* has no merit and is refused.

[16] The respondents object to what they call the legal capacity and credibility of Elnos Mutema, who deposed to the supporting affidavit in this application. The objection is anchored on the allegation that he has failed to provide proof that he is indeed the registered mine manager for Enfield Syndicate. It is contended that his claim that he is the mine manager is unverified and a misrepresentation. It is argued that the supporting affidavit of Elnos Mutema is fatally defective, lacks evidential value, and ought to be struck off the record. There are basically three grounds on which this preliminary point is anchored. The first is that the deponent of the supporting affidavit lacks legal capacity. In general, a person who lacks legal capacity is a minor or a person with compromised mental faculties. No allegation has been made that the deponent is a minor or is suffering from compromised mental faculties. In addition, the issues of lack of credibility and lack of evidential value are not points of law

dispositive of the matter without consideration of the merits. These are matters of evidence and weight, not admissibility.

[17] In any event, Elnos Mutema is not instituting legal proceedings. He is a witness, and his evidence is admissible in terms of r 58 (4) of the High Court Rules, 2021, which says:

> "An affidavit filed with a written application shall be made by the applicant or respondent, as the case may be, or by a person who can swear to the facts or averments set out therein."

[18] Elnos Mutema avers that he witnessed the events he described in his supporting affidavit. Therefore, his affidavit is admissible in terms of r 58(4). In the circumstances, this point *in limine* has no merit and is refused.

[19] The last point *in limine* taken by the respondents is that there are material disputes of fact which cannot be resolved in motion proceedings. It is stated that the founding papers are based on falsehoods and unsubstantiated allegations. It is contended that no spoliation, no deployment of a machete-wielding gang, and no theft of equipment ever occurred. It was submitted that the applicant should have known that a material dispute of fact would arise which cannot be resolved on the papers. The respondents sought that the application must be dismissed.

[20] It is important to restate the basic principles applicable in the resolution of cases in motion proceedings. Motion proceedings are about the resolution of legal issues based on common cause facts. The courts have accepted, though, that in certain instances a robust and common-sense approach can lead to a resolution of disputed facts on the papers without causing an injustice to either party. In *Muzanenhamo* v *OIC, Law & Order & Ors* 2013 (2) ZLR 604 (S) at 608 A-F, the court said as a general rule in motion proceedings, the courts are enjoined to take a robust and common-sense approach to disputes of fact and to resolve the issues at hand despite the apparent conflict. The prime question is whether the dispute of fact can be resolved on the papers without causing injustice to either party. See: *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi* 2009 (2) ZLR 132 (H) at 136F-G:

[21] The view I take is that indeed there are disputes of fact in this case; however, this matter can be resolved on common cause or facts not seriously disputed. This can be achieved without causing injustice to either of the parties. It is for this reason that this point *in limine* has no merit and is refused.

The merits

The law

[22] This is an application for a spoliation order. The *locus classicus* in spoliation applications which enunciated the principle underlying *mandament van spolie* stems from *Nino Bonino* v *De Lange* 1906 TS 120 at 122, where INNES CJ said:

> 'It is a fundamental principle that no man is allowed to take the law into his own hands; no one is permitted to dispossess another forcibly or wrongfully and against his consent of the possession of property, whether movable or immovable. If he does so, the court will summarily restore the *status quo ante,* and will do that as a preliminary to any inquiry or investigation into the merits of the dispute.'

[23] The purpose of the spoliation remedy is to restore factual possession to a person who has been unlawfully dispossessed of property or subjected to an unlawful interference in rights that such a person exercises. The enquiry undertaken by a court is ordinarily narrow. It concerns two factual issues, the first one being whether the person claiming to have been despoiled was factually and legally the possessor of the property or rights in question and, the second being whether that person's use and enjoyment of that property or rights have unlawfully been taken away or interfered with. Once these factual findings are made, the court restores possession forthwith and without any enquiry into the underlying reason for the possession. What constitutes spoliation or unlawful deprivation is a matter to be determined on the facts of each case. The aim of spoliation is to prevent self-help. It seeks to prevent people from taking the law into their own hands. An applicant, upon proof of two requirements, is entitled to a *mandament van spolie* restoring the *status quo ante*.

[24] It is trite that the *mandament van spolie* is a remedy rooted in the rule of law, the purpose of which is to uphold public order by precluding resort to self-help and the taking of the law into one's own hands. The remedy is available to instances of actual dispossession. A spoliation order will issue only where unlawful spoliation is established, namely a disturbance of possession without consent and against the will of the possessor. This requires a minimum threshold of actual physical interference. The deprivation element entails that the interference must be substantial enough to terminate or frustrate the possessor's control over the property. See: *Bisschoff and Others* v *Welbeplan Boerdery (Pty) Ltd* 2021 (5) SA 54 (SCA) para 7.

[25] Where final relief is sought on motion, as is the case in this instance, the general rule is that it will only be granted if those facts as stated by the respondent, together with those facts stated by the applicant that are admitted by the respondent, justify the granting of the application, unless it can be said that the denial by the respondent of the facts alleged by the applicant is not such as to raise a real, genuine or *bona fide* dispute of fact. In other words, the approach formulated in *Plascon-Evans Paints Ltd* v *Van Riebeeck Paints (Pty) Ltd* [1984] ZASCA 51; 1984 (3) SA 623 (A) at 634E-C must be applied.

[26] The applicant contends that he is the registered owner of Enfield Coronation mining claims. He states that he and his employees and management were in peaceful and undisturbed possession of the claims and on 13 July 2026, the first respondent entered the mining claims and erected physical barricades, tents, and blockades across the access points. It is stated that armed agents violently chased away the mine manager and the entire workforce and took control of the mining claims. It is averred that the first respondent has blocked any entry to the mining claims, deploying aggressive personnel to enforce the blockade. The applicant states that the respondents have resorted to self-help and have taken the law into their own hands and prays that the application be granted.

[27] *Per contra*, the respondents denied that they erected physical barricades, tents, or deployed any individuals, machete-wielding or otherwise, to interfere with the applicant's operations. The respondents accept that they have erected boom gates, which they say do not block lawful

access as they are open and being used by anyone who has a right of access through the affected road. A copy of a logbook of vehicles that have accessed the boom gates is annexed to the notice of opposition. The respondents contend that they have a right to erect boom gates at their property, and the boom gates have not restricted lawful entry to any person entitled to access the farm. It is stated that the boom gates are manual, operational and accessible to all persons who have a lawful right to enter the farm. The respondents pray for the dismissal of this application with costs on an attorney and client scale.

[28] In the answering affidavit, the applicant insists that the respondents have resorted to self-help by erecting physical blockades, deploying armed agents, and asserting total control over access servitudes leading directly to the mining claims. It is stated that the respondents have arrogated to themselves the powers of a private police force, vetting, registering, blocking, and restricting access to the mining claims.

The application of the law to the facts

[29] It seems to me that this case falls within an extremely short, narrow and simple compass. The essence of the issue at play in this matter is, to my mind, this: was there undisturbed or unrestricted and peaceable possession of the roads leading to the applicant's mining claims prior to 13 July 2026? The respondents do not dispute that they erected boom gates on the roads used by the applicant to the mining claims. In other words, the erection of boom gates is common cause because it is admitted. Therefore, this matter can be resolved on common cause or facts not seriously disputed. This can be achieved without causing injustice to either of the parties.

[30] The main purpose of a boom gate is to control and regulate the flow of vehicles and/or pedestrians to access a road or in and out of secure areas. In other words, boom gates restrict access to a road or property. At law, a *mandament van spolie* is available for the restoration of a *quasi-possessio* of certain rights, such as the right of access to and the use of a road. Erecting a boom gate that restricts or blocks access to a road where a person previously enjoyed peaceful and undisturbed use can indeed be taken as spoliation. To successfully bring a spoliation

application relating to a road, the applicant must prove: that he was in peaceful and undisturbed possession or use of the road/access point prior to the erection of the boom gate; and that the respondent unlawfully deprived or restricted him of that use or access without his consent and without following due legal process. In *casu*, the question is not whether the respondents own the farm, but whether the applicant previously had unrestricted use or access to the roads.

[31] I accept that the applicant was previously in peaceful and unrestricted use of the roads, and he has been deprived of unrestricted use of such roads. And the boom gates were erected without following due process nor with the consent of the applicant. In other words, I am satisfied that the applicant has proven that he has been unlawfully restricted in the use of the roads and has proven substantial interference to frustrate his use of the roads. The fact of the matter is that the applicant has been deprived of at least part of his former method of access to the roads to his mining claims.

[32] I am mindful that the purpose of the spoliation remedy is to restore factual possession to a person who has been unlawfully dispossessed of property or subjected to an unlawful interference in rights that such a person exercises. In this case, there has been unlawful interference with the right of the applicant to access and use the roads leading to the mining claims. In other words, the fact that the respondents have erected boom gates, which restrict use and access to the roads, amounts to spoliation.

[33] It is a fundamental principle of our law that a person may not take the law into his own hands. As stated above, I am satisfied that the applicant has proven that he was in peaceful and unrestricted use of the roads and has proven his dispossession, in the sense that he is now restricted in the use of the roads. In general, there is no reason why his unrestricted use of the roads cannot be restored. The question that has exercised my mind is what is the appropriate relief that should be granted to the applicant? As stated above, the purpose of the spoliation remedy is to restore factual possession to a person who has been unlawfully dispossessed of property or subjected to an unlawful interference with the rights that such a person exercises. The question is, would a spoliation remedy extend to ordering the removal of the boom gates?

[34] The remedy of *mandament van spolie* performs the limited and exclusive function of restoring the *status quo ante* in the form of a factual situation. This is because the *mandament* is a possessory remedy, not an interdict, and should not be applied for or awarded as an interdict. In *Chiwenga* v *Mubaiwa* 2020 (1) ZLR 1360 (S) at 1368, the court said the respondent was granted a final interdict when she had sought a spoliation order. This was characterised as a serious misdirection. The removal of the boom gates goes beyond the scope of the remedy of spoliation. The applicant is entitled to the unrestricted access and use of the roads and no more. In the circumstances, the relief sought by the applicant cannot be granted in the manner it appears in the draft order. The draft order must be varied.

[35] The question of costs remains to be considered. No good grounds exist for a departure from the general rule that costs follow the cause. The applicant is clearly entitled to his costs. In the result, it is ordered as follows:

In the result, the applicant is granted the following order.

a) The first respondent, his agents, employees, or anyone acting on his behalf is ordered, upon service of this order, to restore peaceful, and unrestricted or undisturbed use or access of the roads leading to mining claims known as Enfield Coronation 2 situated partly on Bruceham Farm (6 hectares) partly on Victoria Farm 1 (1 hectare) approximately 137 meters north of Coronation and approximately 500 meters north east of trig beacon 475/1 Re Pegs 4697 & 4718 Masvingo to the applicant, his site manager, and his employees.
b) The first respondents pay the costs of suit on an ordinary scale.

Makiya and Partners, applicant's legal practitioners
Mutumbwa Mugabe and Partners, 1st and 2nd respondents' legal practitioners